

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC)

Federal Correctional Complex (FCC) Butner

Blood Products and Services

Pursuant to the Federal Acquisition Regulation (DEV) FAR Part 6.103-1 - Only one responsible source and no other supplies or services will satisfy agency requirements. - the Federal Bureau of Prisons (BOP), Federal Correctional Complex (FCC) Butner, North Carolina, requests approval to obtain services for Non-Medical Physicist Services – Blood Products and Services for human use on an other than full and open competition basis. The following information submitted in accordance with Federal Acquisition Regulation (DEV) FAR 6.103-1 supports this request.

1. FAR Deviation 6.104-1(a)(1): Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition.":

Federal Bureau of Prisons
Federal Correctional Complex Butner (FCC Butner)
Old Highway 75
Butner, North Carolina 27509

2. FAR Deviation 6.104-1(a)(2): Nature and/or description of the action being approved:

The action to be approved is the use of only one responsible source and no other supplies or services will satisfy agency requirements in the acquisition of Blood Product Services for the Federal Correctional Complex for the base year plus two option years. FCC Butner intends to issue a purchase order on a non-competitive, sole source basis to the American Red Cross (ARC), 2425 Park Rd., Charlotte, North Carolina, for the provision of screened and certified for human use Blood Product Services. The required Blood Product Services must be available 24 hours per day, seven days per week. Contractor must be capable of providing blood and blood products for transfusion (to include leukoreduced red blood cell and, single donor platelets). Contractor must be capable of performing antibody identification for irregular antibodies and screen units for compatibility. Contractor shall perform special tests such as sickle cell screening, cytomegalovirus (CMV) screening, and specific antibody screening for compatible units. Contractor is capable of providing other testing as outlined in the American Association of Blood Banks (AABB) manual. Contractor is part of the American Rare Donor Program to locate rare blood types which are often required on a regular basis.

3. FAR Deviation 6.104-1(a)(3): Description of the supplies or services required to meet the agency's needs (including the estimated value):

The service/supply contract provides blood products and the necessary special testing and handling to provide safe transfusions and prevent transfusion reactions that can ultimately lead to death. Without these blood products and services available to FCC Butner's Medical Referral Center, the BOP would incur additional correctional and medical costs to take the patient to an outside medical facility to receive the blood products. The cost of blood products, special testing and handling for a base year plus two option years is estimated to be \$318,405.27.

4. FAR Deviation 6.104-1(a)(4): An identification of the statutory authority permitting other than full and open competition:

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304 (a)(3). It has been determined that the use of this authority is appropriate pursuant to FAR Part (Dev) 6.103-1, only one responsible source and no other services will satisfy agency requirements.

5. FAR Deviation 6.104-1(a)(5): A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

Blood Product Services are required to continue providing appropriate patient medical care based on a patient's medical condition. Without these blood products in house, it would incur additional correctional and medical cost to take the patient to an outside medical facility to receive the blood products. safe and effective treatment and documentation services for medical inmates at FCC Butner.

6. FAR Deviation 6.104-1(a)(6): A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by subpart 5 and, if not, which exception under part 5 applies:

A detailed search did not provide another vendor able to meet the needs of the government especially participating in the American Rare Donor Program.

7. FAR Deviation 6.104-1(a)(7): A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.:

Pursuant to FAR 13.106-3(a), the Contracting Officer has determined the prices for these services are compatible with market rates and has been deemed fair and reasonable in the past.

The contracting officer at FCC Butner will evaluate the quoted pricing to ensure that it continues to satisfy this determination.

8. FAR Deviation 6.104-1(a)(8): The market research conducted (see part 10) and the results or a statement of the reason market research was not conducted:

The pricing offered was in line with past pricing offered by ARC over the previous contract period as the incumbent. It is in the best interest of the government to utilize American Red Cross as the contractor as they have proven over a long period of performance to be able to meet our needs for timely and efficient delivery of blood products and support blood product testing. Failure to continue services will cause significant disruption to medical services for blood product dependent patients and blood product needs of FCC Butner. A disruption would further incur a significant increase in correctional costs to send patients out for blood products. A search of blood product services in North Carolina produced only one source that participates in the American Rare Donor Program. It is not uncommon with such a mix of patients at a single medical center to have many patients that need unique or rare blood types for successful and medically safe transfusions often on a frequent or recurrent basis.

9. FAR Deviation 6.104-1(a)(9): Any other facts supporting using other than full and open competition, such as:

Per (DEV) FAR 6.103-5 (a), only one responsible source and no other supplies or services will satisfy agency requirements, applies to this requirement. There is not currently a contract for these services. Quarterly purchase orders to the American Red Cross are being utilized to maintain services until a contract is awarded.

10. FAR Deviation 6.104-1(a)(10): A listing of the sources, if any, that expressed an interest in the acquisition in writing:

American Red Cross
2425 Park Road
Charlotte, NC 28236

11. FAR Deviation 6.104-1(a)(11): A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

None.

12. FAR Deviation 6.104-1(a)(12): Contracting officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this request for approval of a Justification for Other Than Full and Open Competition the procurement of advanced life emergency ambulance services is made in good faith. The supporting data and information contained herein are accurate and complete to the best of my knowledge and belief.

Submitted By:

Broguen McKeon,
Lead Contract Specialist

Date

Concurrence By:

CAPT Philip Chorosevic
Health Services Administrator, FCC Butner

Date

Approval:

Tammie Johnson, Contracting Officer
General Contracting Section/ Field Acquisition

Date